

Humanitarian Intake Summary

Venezuela — Political Persecution Claim

Prepared: May 21, 2026 | Status: Pending Attorney Review

⚠ ATTORNEY REVIEW REQUIRED. This summary is for internal use only. Do not share legal conclusions with the client before attorney review.

1. Likely Matter Type

Affirmative asylum — primary pathway based on available facts.

Defensive asylum and withholding of removal should also be evaluated given the pending NTA and upcoming master hearing. CAT protection may be a secondary option depending on nexus and the nature of threats. Matter type should be confirmed by attorney after review of NTA and immigration history.

2. Parties

Client name: Not provided in intake narrative

Country of origin: Venezuela

Current location: Florida (living with relatives)

Current immigration status: Unknown — NTA issued; master hearing pending (~45 days)

Custody/detention status: Not detained; appears released pending hearing

Family members involved: 8-year-old son (accompanied client to U.S.; immigration status unknown)

Interpreter needs: Not mentioned — Venezuelan Spanish likely needed; confirm

3. Core Narrative Summary

Background

- Client is a 29-year-old woman from Venezuela
- Participated in anti-government demonstrations
- Targeted by a political group connected to local officials following her participation

Harm or Threats Described

- Multiple threats following demonstration participation
- Armed men came to her workplace and asked for her by name (at least one incident)
- Threats received via WhatsApp (screenshots reportedly available)
- No physical assault or detention reported — confirm with attorney

Government Involvement or Failure to Protect

- Threatening actors described as connected to local officials

- No mention of client reporting incidents to police or seeking government protection
- Government nexus is implied but not yet clearly established — requires further development

Timeline of Events

- Date of demonstration participation: unclear
- Date threats began: unclear
- Date of workplace incident: unclear
- Date of departure from Venezuela: 2023 (specific date unknown)
- Date of U.S. entry: 2023, southern border (specific date unknown)

Entry Into the United States

- Entered through the southern border in 2023
- Entry method (port of entry vs. between ports) not specified
- Whether credible fear interview was conducted is unclear

Current Situation

- Living with relatives in Florida
- Working informally (house cleaning)
- NTA received; master calendar hearing approximately 45 days out
- No criminal history reported

Fear of Return

- Client states she fears the same group would target her again if returned to Venezuela
- Fear appears genuine and consistent with described pattern of threats
- Specific fear articulation should be developed further in declaration interview

4. Potential Legal/Risk Issues

Issue	Why It Matters	Attorney Review Needed
One-year filing bar	Entry was in 2023; if no asylum application filed, one-year deadline may have passed or be imminent depending on exact entry date.	Yes — confirm entry date and filing history immediately
Particular social group (PSG) unclear	Claim rests on political opinion and/or PSG; group composition needs precise legal framing to survive scrutiny.	Yes — attorney must define PSG and assess nexus
Government nexus ambiguity	Actors described as "connected to local officials" — degree and directness of nexus not yet established.	Yes — nexus analysis is foundational
Inconsistent timeline	Client had difficulty remembering dates during intake; noted emotional distress.	Yes — credibility is central; trauma-informed declaration prep needed

Issue	Why It Matters	Attorney Review Needed
Prior removal proceeding	NTA issued; client is in removal proceedings — affirmative asylum pathway may be foreclosed; defensive posture likely.	Yes — confirm procedural posture with immigration court
Corroborating evidence gaps	No police reports or medical records; relies on WhatsApp screenshots and demonstration photos.	Yes — evidence package needs significant development
Son's status	8-year-old son's immigration status not addressed in intake.	Yes — derivative vs. independent claim must be assessed
Informal employment	Working without authorization may be relevant to status and future applications.	Flag — attorney to assess
Trauma-related memory gaps	Inconsistent dates and visible distress may affect credibility if not properly documented and addressed.	Yes — psychological evaluation may be warranted

5. Missing Information

Identity & Background

- Full legal name
- Date of birth (confirmed)
- Nationality and ethnicity
- Prior addresses in Venezuela
- Educational and employment background

Timeline Clarifications

- Exact date of U.S. entry in 2023
- Dates of demonstrations
- Dates of each threat incident
- Date of workplace confrontation
- Date of departure from Venezuela

Harm & Threat Details

- Nature and content of WhatsApp threats
- Number of separate threat incidents
- Whether client suffered any physical harm
- Whether son was present or threatened
- Identity of threatening actors (names, affiliation, description)

Government Interaction

- Whether client ever reported threats to police or authorities in Venezuela
- Any government response if reported
- Specific connection between threatening actors and local officials — names, roles, relationships

Immigration History

- Exact entry date and location
- Port of entry or between-ports crossing
- Whether credible fear interview was conducted
- Current immigration court and case number
- Whether any prior attorney was consulted
- Any prior U.S. immigration filings

Family Information

- Son's full name and date of birth
- Son's immigration status and NTA status
- Father of child — location, involvement, any threats
- Family members remaining in Venezuela and their current safety

Evidence & Corroboration

- WhatsApp screenshots — accessible and in what format?
- Photos from demonstrations
- Potential witnesses to threats
- News coverage of political activity client participated in

Medical / Psychological Information

- Any injuries sustained
- Current mental health status — distress noted at intake
- Whether psychological evaluation has been or should be sought

Court or Detention Information

- Copy of NTA
- Immigration court location and case number
- Master hearing exact date
- Prior hearing appearances
- Whether client has legal representation for the hearing

6. Preliminary Evidence Checklist

Identity Documents

- Passport (Venezuelan)
- National ID (cédula)
- Birth certificate — client and son
- Son's passport or ID if available

Immigration Documents

- Copy of Notice to Appear
- I-94 or entry records if available

- Any prior USCIS or immigration court correspondence

Country Conditions Evidence

- U.S. State Department Country Report on Venezuela (current)
- UNHCR guidance on Venezuelan asylum claims
- Documented reports on political persecution in Venezuela
- Reports on paramilitary/government-linked groups

Personal Supporting Evidence

- WhatsApp threat screenshots (with metadata if available)
- Photos from demonstrations
- Any written communications threatening client
- Evidence of political activity (membership, social media, group affiliation)

Witness Evidence

- Statements from coworkers who witnessed workplace incident
- Statements from family or friends aware of threats
- Any witnesses to demonstration participation

Medical / Psychological Evidence

- Psychological evaluation or letter from mental health provider
- Medical records if physical harm occurred

Court or Detention Records

- Full NTA
- Any prior court orders
- Any communications from immigration court

Other Supporting Documents

- Son's birth certificate and school records (relationship evidence)
- Evidence of current residence (relative's address)

7. Urgency Review

TIME-SENSITIVE. Escalate promptly — master calendar hearing approximately 45 days out and one-year filing bar status is unresolved.

- **Master calendar hearing is ~45 days out. Attorney must review the NTA, confirm the court and date, and determine whether representation can be entered in time.**
- **One-year asylum filing bar is a critical threshold. Entry was sometime in 2023 — if exact date is not confirmed immediately, filing strategy cannot be assessed.**
- Client is emotionally distressed with a young child. Family considerations and psychological support needs should be assessed early.

- No criminal history or detention reported — no emergency-level custodial risk at this time.

8. Attorney Review Notes

Biggest legal uncertainty: Whether the one-year filing bar has been triggered and whether any exception applies. Entry date must be confirmed before any filing strategy can be set.

Most important missing fact: Exact U.S. entry date and full NTA details — the entire procedural posture and available remedies depend on this.

Most sensitive issue: Credibility. Client showed emotional distress and inconsistent date recall at intake. This is consistent with trauma, but will require careful handling in declaration drafting and hearing prep. Psychological evaluation should be discussed with attorney.

What staff should not communicate before attorney review: Do not advise on chances of success, strength of claim, or what will happen at the hearing. Do not advise on whether to apply for asylum or other relief. Do not make representations about the one-year bar.

Immediate escalation recommended: Yes — 45-day hearing window and potential one-year bar issue warrant prompt attorney involvement.

9. Suggested Next Steps

- **Escalate to attorney immediately — hearing in ~45 days; one-year bar issue unresolved**
- **Obtain and review full NTA — confirm court, case number, hearing date, and charges**
- **Confirm exact U.S. entry date — necessary to assess one-year bar and filing options**
- Request missing evidence — WhatsApp screenshots, demonstration photos, identity documents, birth certificates
- Schedule declaration interview — trauma-informed, with interpreter; allow adequate time
- Assess psychological evaluation referral — distress noted at intake; may support credibility and extraordinary circumstances exception
- Run deadline review — once entry date confirmed, calculate one-year bar and exceptions
- Assess son's status independently — confirm whether he has separate NTA or derivative status

Attorney review required before relying on this summary or communicating legal conclusions to the client.